

General Form of Order
- Financial Order



Table with 2 columns: Field Name, Value. Rows include Case Number (BV20D01752), Applicant (Nadia Zahmoul), Respondent (Karim Noureddine Zahmoul), Co-Respondent, Applicant's Solicitor's ref, and Respondent's Solicitor's ref.

The Matrimonial Causes Act 1973

The marriage of Nadia Zahmoul and Karim Noureddine Zahmoul

Before Deputy District Judge Poyner sitting in private at a hearing at The Family Court at Central Family Court, First Avenue House, 42-49 High Holborn, London, WC1V 6NP on 6th December 2024.

After hearing and Stephen Crispin (direct access counsel) on behalf of the respondent

After consideration of the documents lodged by the respondent;

AND UPON the applicant failing to attend either in person or by the video link provided

The parties

1. The applicant is Nadia Zahmoul

The respondent is Karim Noureddine Zahmoul

Definitions

2. The "Frost Street Properties" are 240 Frost Street, Brooklyn, NY 11211, USA, namely:

- a. "1F Frost Street" at Unit 1F 240 Frost Street, Brooklyn, NY 11211;
b. "2R Frost Street" at Unit 2R 240 Frost Street, Brooklyn, NY 11211;
c. "3R Frost Street" at Unit 3R 240 Frost Street, Brooklyn NY 11211; and
d. "4F Frost Street" at Unit 4F 240 Frost Street, Brooklyn, NY 11211.

3. "3100 Arrowhead" is: 3100 Arrowhead Road, Teton Village, 83025 Wyoming, USA

4. "3093 Arrowhead" is: 3093Arrowhead Road, Teton Village, 83025 Wyoming, USA

5. "The Arrowhead mortgage" means the mortgage secured upon 3100 Arrowhead and 3093 Arrowhead in favour of the Bank of Jackson Hole with the mortgage account number 00000148435 and any mortgage arrears or ancillary costs associated with the said mortgage.

Recitals

6. By the Order of Mr Justice MacDonald dated 24 May 2024:

(i) The applicant was directed by 4pm on 26 May 2024 to:

a. transfer to the respondent all her legal estate and beneficial interest in 3100 Arrowhead, subject to the Arrowhead mortgages secured against the property being re-arranged or replaced.

b. transfer to the respondent all her legal estate and beneficial interest in 1F Frost Street and 4F Frost Street.

(ii) The respondent was directed by 4pm 26 May 2024 to:

a. transfer to the applicant all his legal estate and beneficial interest in the 3093 Arrowhead, subject to the Arrowhead mortgages secured against the property being re-arranged or replaced.

b. transfer to the applicant all his legal estate and beneficial interest in 2R Frost Street and 3R Frost Street.

7. By way of an Appellant's Notice dated 22 July 2024 the applicant applied to appeal the Order of 24 May 2024, and applied for a stay. The appeal application has been given case number CA-2024-001342.

8. The respondent sent to the applicant on 22 July 2024 documents that need to be signed and executed in order to effect the property transfers directed by the Order of 24 May 2024, and the applicant has not signed or executed those documents.

9. On 22 August 2024 and 28 October 2024 the court office at the Court of Appeal confirmed to the parties that no stay had been granted in respect of the Order of 24 May 2024.

10. On 22 August 2024 the respondent sent to the Court a D11 seeking enforcement of the Orders set out at paragraph 6 of this Order, above. That application was issued by the Court on 13 November 2024 and listed for a hearing today.

11. On 5 December 2024 the Court of Appeal granted a stay in respect of paragraphs 21, 22, 23, and 24 of the Order dated 24 May 2024, a copy of which was sent to the respondent at 15:50 on 5 December 2024, the effect of which was to stay those orders recorded at paragraph 6 of this Order, above.

12. The Court noted that this case involves property adjustment orders concerning property located in a foreign jurisdiction, assets of a significant quantum, and proceedings with a long history, and indicated that future hearings in this application should be listed before a full time District Judge, or Circuit Judge.

13. The Court noted that the applicant has sought to keep her postal address confidential from the respondent, having filed Form C8 in her application made under the Family Law Act 1986 under case number GL24F70075, and that therefore the respondent has served documents at the email address the applicant is known to use (nadia@rosekross.com):

IT IS ORDERED THAT:

14. The respondent's D11 application filed on 13 November 2024 is adjourned;

15. In the event the applicant's appeal against the Order of 24 May 2024 is dismissed, or permission to appeal is refused by the Court of Appeal:-

(i) the respondent shall within 14 days of that decision send to the applicant fresh copies of the documents the applicant needs to sign or execute in order to effect the transfers ordered by paragraphs 21, 22, 23 and 24 of the Order of Mr Justice MacDonald dated 24 May 2024;

(ii) the applicant shall within 14 days of receipt of these documents sign or execute them and return them to the respondent.

16. In default of the respondent complying with paragraph 15(ii) of this order, the respondent may write to the Court requesting that his D11 application issued on 13 November 2024 be relisted for a hearing.

17. The following directions shall apply to any future hearing of this application:

(i) Due to the foreign properties, high value and complex history of the case the hearing shall be listed at the Central Family Court before a full time District Judge or Circuit Judge with a time estimate of two hours.

(ii) The applicant may attend remotely, and a video link shall be provided to her by the Court.

(iii) The respondent shall attend in person, and shall produce hard copies of the documents he asks that the Judge sign.

(iv) As these properties are in the USA, the respondent has permission to file and serve a short statement to exhibit correspondence from his legal representatives in that jurisdiction providing information the court will require in order to sign documents on behalf of the applicant.

(v) Orders may be made in the absence of the applicant if she fails to attend.

Costs

18. Costs reserved.

